

CURVA DENIM / WHOLESALE PROGRAM

U.S. COMPLIANCE PACK

A buyer/importer review framework for adult plus-size denim apparel sold in the United States. Includes labeling, care, flammability, PFAS, RSL and supply-chain traceability.

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Audience	U.S. buyers, importers, compliance teams and suppliers
Market	United States
Status	Buyer review / controlled working document

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Commercial terms, measurements, test limits and compliance claims become binding only when confirmed in the signed quotation, purchase order and approved specification.

1. Scope and responsibility

This pack supports compliance review for adult apparel. It is not legal advice, a laboratory report or a declaration that any product is compliant. The U.S. importer and retailer must confirm the laws, state requirements, test plan and records applicable to each SKU and destination.

Party	Core responsibility
Buyer / importer	Determine applicable law, responsible entity/RN, test plan, label content and market authorization
Curva Denim / supplier	Provide accurate BOM, origin and manufacturing records; execute approved labels and tests
Factory / mill / laundry	Maintain lot traceability, chemical declarations, process records and change control
Laboratory	Use agreed methods, identify samples and issue attributable reports

2. FTC textile labeling checklist

Most covered textile products require fiber content, country of origin, and the identity of the responsible manufacturer, importer or other dealer. Required disclosures must be truthful and presented as required in English.

Label element	Status	Evidence / owner
Generic fiber names and percentages by weight	TBC	Approved BOM + test/declaration
Country of origin	TBC	Manufacturing record + importer review
Responsible company name or U.S. RN	TBC	Buyer/importer
Permanent placement / accessibility	TBC	Approved label artwork and sample
English disclosure	TBC	Artwork review
E-commerce claims match physical label	TBC	Buyer content audit

3. Care labeling basis

A permanent care label must provide complete regular-care instructions supported by a reasonable basis. Warnings are needed when a normally assumed care procedure would harm the garment.

Care decision	Required support
Wash method and temperature	Fabric, trim, wash and color performance after representative care cycles
Bleach instruction	Evidence for permitted or prohibited bleach type
Drying method	Dimensional stability, appearance and trim performance
Ironing	Heat sensitivity of finish, elastane, labels, patch and hardware
Dry cleaning	Only if supported; any necessary warnings must be stated
Record retention	Test reports, technical rationale, artwork approval and final label sample

4. Flammability - 16 CFR Part 1610

General wearing-apparel textiles must not be Class 3, rapid and intense burning, under the applicable standard. The buyer/importer determines test applicability and guaranty strategy.

Control	Requirement
Material review	Identify fabric construction, surface type, weight and any exemption/test rationale
Testing	Use a qualified laboratory and the current applicable 16 CFR Part 1610 procedure
Sample identity	Link report to fabric, color, finish, wash, supplier, lot and intended garment
Change control	Assess whether fiber, finish, wash or construction changes require new evidence
Records	Retain report, sample identification and importer decision

5. PFAS apparel controls

New York prohibits intentionally added PFAS in covered apparel from January 1, 2025 and requires compliance certifications to be maintained. California also restricts regulated PFAS in textile articles and requires supplier/manufacturer documentation. State-law applicability must be reviewed for every sales destination.

PFAS control	Required evidence
No intentional addition	Signed supplier declarations covering fabric, finishes, coatings, trims and packaging treatments
Chemical inventory	Mill and laundry recipe / SDS review; no unapproved water-, oil- or stain-repellent treatment
Testing when required	Buyer-approved method and threshold; laboratory report linked to SKU/material
Certification	State-appropriate signed compliance certificate when required
Change control	Reconfirm after any mill, finish, wash chemical or trim supplier change

6. Restricted substances and chemical management

The buyer RSL and applicable destination law govern. The list below is a screening framework, not a complete legal limit table.

Area	Review
Dyes and auxiliaries	Restricted azo amines, disperse dyes where relevant, formaldehyde and pH
Metal components	Lead, cadmium, nickel release and other buyer-specified metals
Plastics / prints / coatings	Phthalates and buyer-specified restricted substances
Leather / patches / biocides	Chromium VI, DMF and treatment declarations where applicable
Wash chemicals	SDS, recipe approval, wastewater expectations and PFAS review
Laboratory plan	Risk-based sample matrix, current method, limits, lab accreditation and report linkage

7. Cotton and supply-chain traceability

Under UFLPA enforcement, importers may need evidence tracing cotton and other inputs through the full supply chain. No sourcing claim should be made without verifiable records.

Tier	Minimum record set
Raw cotton / fiber	Origin declaration, producer/source records and transaction linkage
Yarn	Spinner identity, lot, purchase documents and production linkage
Fabric	Mill identity, yarn lot, weaving records, dye/finish lot and invoices
Garment	Factory identity, cut/sew records, fabric lot consumption and PO
Shipment	Commercial invoice, packing list, bills, origin records and SKU/carton linkage
Screening	Supplier and entity-list due diligence documented by buyer/importer

8. Product file checklist

Document	Owner	Status
Signed PO and final specification	Buyer / supplier	TBC
Approved BOM and supplier list	Product team	TBC
Approved label and packaging artwork	Buyer / importer	TBC
Fiber/care/origin substantiation	Supplier / importer	TBC
16 CFR Part 1610 evidence	Importer / laboratory	TBC
Buyer RSL / chemical reports	Supplier / laboratory	TBC
PFAS declarations/certification	Supplier / manufacturer	TBC
Cotton and supply-chain traceability file	All tiers / importer	TBC
Final inspection and shipment records	QC / supplier	TBC

No shipment release until the buyer/importer closes all applicable items.

9. Supplier declaration template

To be completed per SKU / material family and signed by an authorized supplier representative.

Field	Supplier entry
Buyer / PO / SKU	
Style / color / size range	
Manufacturing country and facilities	
Fiber composition and material suppliers	
PFAS intentionally added?	YES / NO - attach supporting declarations
Buyer RSL conformance evidence	
Traceability file reference	
Exceptions / deviations	
Authorized name / title / signature / date	

10. Official references and revision log

Official references - verify the current version before each program

- FTC Clothing and Textiles: <https://www.ftc.gov/business-guidance/industry/clothing-and-textiles>
- FTC Care Labeling Rule guidance: <https://www.ftc.gov/business-guidance/resources/clothes-captioning-complying-care-labeling-rule>
- CPSC Flammable Fabrics Act / 16 CFR Part 1610:
<https://www.cpsc.gov/Business--Manufacturing/Business-Education/Business-Guidance/Flammable-Fabrics-Act>
- New York PFAS in Apparel Law: <https://dec.ny.gov/environmental-protection/pollution-prevention/pfas-in-apparel-law>
- California textile PFAS information: <https://dtsc.ca.gov/>
- CBP UFLPA resources: <https://www.cbp.gov/trade/forced-labor/UFLPA>

Revision	Date	Summary	Owner	Approval
1.0	2026-08-26	Initial U.S. adult denim compliance review pack	Curva Denim	_____